

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 2182 By: Howard of the Senate
3 and
4 Moore of the House
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6

7 An Act relating to civil remedies; creating the
8 Uniform Civil Remedies for Unauthorized Disclosure of
9 Intimate Images Act; providing short title; defining
10 terms; authorizing cause of action for unauthorized
11 disclosure of certain material; providing exceptions
12 to liability for certain disclosures; providing for
13 inapplicability of certain exceptions under certain
14 circumstances; authorizing exclusion or redaction of
15 identifying information in certain pleadings and
16 documents; authorizing recovery of damages and other
17 relief; establishing statute of limitations for
18 certain actions; construing provisions; providing for
19 codification; and providing an effective date.

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25 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
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1 parents, legal guardians, or individuals with legal
2 custody of a child unless plaintiff meets certain
3 burden of proof; prohibiting a finding of public
4 concern or public interest solely based on the
5 depicted individual being a public figure; excluding
6 certain date providers from being liable unless the
7 provider had actual knowledge the specific content
8 constitutes an intimate image disclosed without
9 consent and failed to remove or disable access to the
10 content; authorizing the exclusion or redaction of
11 identifying characteristics of the plaintiff in court
12 proceedings; providing for recovery of damages by
13 prevailing plaintiff; authorizing the court to award
14 a prevailing plaintiff reasonable attorney fees and
15 costs and other additional relief including
16 injunctive relief; providing a statute of limitations
17 of four years for actions brought under this act;
18 applying tolling statutes; tolling actions for
19 depicted individuals who are minors on the date of
20 disclosure or threatened disclosure; construing
21 provisions; providing for codification; and providing
22 an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1121 of Title 12, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Uniform Civil
Remedies for Unauthorized Disclosure of Intimate Images Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1122 of Title 12, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Consent" means affirmative, conscious, and voluntary
2 authorization by an individual with legal capacity to give
3 authorization;

4 2. "Depicted individual" means an individual whose body is
5 shown in whole or in part in an intimate image;

6 3. "Disclose" or "disclosure" means transfer, publication, or
7 distribution to another person;

8 4. "Identifiable" means recognizable by a person other than the
9 depicted individual:

10 a. from an intimate image itself, or
11 b. from an intimate image and identifying characteristic
12 displayed in connection with the intimate image;

13 5. "Identifying characteristic" means information that may be
14 used to identify a depicted individual;

15 6. "Individual" means a human being;

16 7. "Intimate image" means a photograph, film, video recording,
17 or other similar medium that shows:

18 a. the uncovered genitals, pubic area, anus, or female
19 post-pubescent nipple of a depicted individual, or
20 b. a depicted individual engaging in or being subjected
21 to sexual conduct;

22 8. "Person" means an individual, estate, business or nonprofit
23 entity, public corporation, government or governmental subdivision,
24 agency, or instrumentality, or other legal entity; and

1 9. "Sexual conduct" includes:

- 2 a. masturbation,
- 3 b. genital, anal, or oral sexual intercourse,
- 4 c. sexual penetration of, or with, an object,
- 5 d. bestiality, or
- 6 e. the transfer of semen onto a depicted individual.

7 SECTION 3. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1123 of Title 12, unless there
9 is created a duplication in numbering, reads as follows:

10 A. As used in this section:

11 1. "Harm" includes physical harm, economic harm, and emotional
12 distress whether or not accompanied by physical or economic harm;
13 and

14 2. "Private" means:

- 15 a. created or obtained under circumstances in which a
16 depicted individual had a reasonable expectation of
17 privacy, or
- 18 b. made accessible through theft, bribery, extortion,
19 fraud, false pretenses, voyeurism, or exceeding
20 authorized access to an account, message, file,
21 device, resource, or property.

22 B. Except as otherwise provided in Section 4 of this act, a
23 depicted individual who is identifiable and who suffers harm from a
24 person's intentional disclosure or threatened disclosure of an

1 intimate image that was private without the depicted individual's
2 consent shall have a cause of action against the person if the
3 person knew that the content was of the type prohibited.

4 C. Consent to creation of the image or previous consensual
5 disclosure of the image by a depicted individual shall not establish
6 by itself that the individual consented to the disclosure of the
7 intimate image that is the subject of an action under this act or
8 that the individual lacked a reasonable expectation of privacy.

9 D. A depicted individual who does not consent to the sexual
10 conduct or uncovering of the part of the body depicted in an
11 intimate image of the individual shall retain a reasonable
12 expectation of privacy even if the image was created when the
13 individual was in a public place.

14 SECTION 4. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 1124 of Title 12, unless there
16 is created a duplication in numbering, reads as follows:

17 A. As used in this section:

18 1. "Child" means an unemancipated individual who is less than
19 eighteen (18) years of age; and

20 2. "Parent" means an individual recognized as a parent under
21 the laws of this state.

22 B. A person shall not be liable under this act if the person
23 proves that disclosure of, or a threat to disclose, an intimate
24 image was:

1 1. Made in good faith:

2 a. to law enforcement,

3 b. in a legal proceeding, or

4 c. during medical education or treatment;

5 2. Made in good faith in the reporting or investigation of:

6 a. unlawful conduct, or

7 b. unsolicited and unwelcome conduct;

8 3. Related to a matter of public concern or public interest; or

9 4. Reasonably intended to assist the depicted individual.

10 C. Subject to subsection D of this section, a defendant who is
11 a parent, legal guardian, or individual with legal custody of a
12 child shall not be liable under this act for a disclosure or
13 threatened disclosure of an intimate image of the child.

14 D. If a defendant asserts an exception to liability under
15 subsection C of this section, the exception shall not apply if the
16 plaintiff proves the disclosure was:

17 1. Prohibited by law; or

18 2. Made for the purpose of sexual arousal, sexual
19 gratification, humiliation, degradation, or monetary or commercial
20 gain.

21 E. Disclosure of, or a threat to disclose, an intimate image
22 shall not be a matter of public concern or public interest solely
23 because the depicted individual is a public figure.

1 F. A provider of cloud computing, data storage, web hosting, or
2 other infrastructure services shall not be liable under this act
3 solely by reason of providing such services to a person who
4 discloses or threatens to disclose an intimate image, provided that
5 the provider:

6 1. Does not have actual knowledge that the specific content
7 constitutes an intimate image disclosed without consent under this
8 act; or

9 2. Upon obtaining actual knowledge of such content, acts
10 expeditiously to remove or disable access to the content.

11 SECTION 5. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1125 of Title 12, unless there
13 is created a duplication in numbering, reads as follows:

14 In a cause of action filed pursuant to this act:

15 1. The court may exclude or redact from all pleadings and
16 documents filed in the action other identifying characteristics of
17 the plaintiff;

18 2. A plaintiff to whom paragraph 1 of this section applies
19 shall file with the court and serve on the defendant a confidential
20 information form that includes the excluded or redacted plaintiff's
21 name and other identifying characteristics; and

22 3. The court may make further orders as necessary to protect
23 the identity and privacy of a plaintiff.

1 SECTION 6. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1126 of Title 12, unless there
3 is created a duplication in numbering, reads as follows:

4 A. In a cause of action filed pursuant to this act, a
5 prevailing plaintiff may recover:

6 1. The greater of:

- 7 a. economic and noneconomic damages proximately caused by
8 the defendant's disclosure or threatened disclosure,
9 including damages for emotional distress whether or
10 not accompanied by other damages, or
11 b. statutory damages not to exceed Ten Thousand Dollars
12 (\$10,000.00) against each defendant found liable under
13 this act for all disclosures and threatened
14 disclosures by the defendant of which the plaintiff
15 knew or reasonably should have known when filing the
16 action or which became known during the pendency of
17 the action. In determining the amount of statutory
18 damages under this subparagraph, consideration shall
19 be given to the age of the parties at the time of the
20 disclosure or threatened disclosure, the number of
21 disclosures or threatened disclosures made by the
22 defendant, the breadth of distribution of the image by
23 the defendant, and other exacerbating or mitigating
24 factors;

1 2. An amount equal to any monetary gain made by the defendant
2 from disclosure of the intimate image; and

3 3. Punitive damages as allowed under law of this state other
4 than this act.

5 B. In a cause of action filed pursuant to this act, the court
6 may award a prevailing plaintiff:

7 1. Reasonable attorney fees and costs; and

8 2. Additional relief, including injunctive relief.

9 C. This act shall not affect any other right or remedy
10 available under the laws of this state.

11 SECTION 7. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1127 of Title 12, unless there
13 is created a duplication in numbering, reads as follows:

14 A. An action authorized by subsection B of Section 3 of this
15 act for:

16 1. An unauthorized disclosure may not be brought later than
17 four (4) years from the date the disclosure was discovered or should
18 have been discovered with the exercise of reasonable diligence; and

19 2. A threat to disclose may not be brought later than four (4)
20 years from the date of the threat to disclose was made.

21 B. Except as otherwise provided in subsection C of this
22 section, this section shall be subject to the tolling statutes of
23 this state.

1 C. In an action under subsection B of Section 3 of this act by
2 a depicted individual who was a minor on the date of the disclosure
3 or threat to disclose, the time specified in subsection A of this
4 section shall not begin to run until the depicted individual attains
5 the age of majority.

6 SECTION 8. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1128 of Title 12, unless there
8 is created a duplication in numbering, reads as follows:

9 A. This act shall be construed to be consistent with the
10 Communications Decency Act of 1996, 47 U.S.C., Section 230.

11 B. This act may not be construed to alter the laws of this
12 state on sovereign immunity.

13 SECTION 9. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1129 of Title 12, unless there
15 is created a duplication in numbering, reads as follows:

16 In applying and construing this uniform act, consideration shall
17 be given to the need to promote uniformity of the law with respect
18 to its subject matter among states that enact it.

19 SECTION 10. This act shall become effective November 1, 2026."
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1 Passed the House of Representatives the 6th day of May, 2026.

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4 Presiding Officer of the House of
Representatives
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6 Passed the Senate the ____ day of _____, 2026.

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9 Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 2182

By: Howard of the Senate

3 and

4 Moore of the House
5

6 An Act relating to civil remedies; creating the
7 Uniform Civil Remedies for Unauthorized Disclosure of
8 Intimate Images Act; providing short title; defining
9 terms; authorizing cause of action for unauthorized
10 disclosure of certain material; providing exceptions
11 to liability for certain disclosures; providing for
12 inapplicability of certain exceptions under certain
13 circumstances; authorizing exclusion or redaction of
14 identifying information in certain pleadings and
15 documents; authorizing recovery of damages and other
16 relief; establishing statute of limitations for
17 certain actions; construing provisions; providing for
18 codification; and providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 11. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1121 of Title 12, unless there
22 is created a duplication in numbering, reads as follows:

23 This act shall be known and may be cited as the "Uniform Civil
24 Remedies for Unauthorized Disclosure of Intimate Images Act".

SECTION 12. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1122 of Title 12, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Consent" means affirmative, conscious, and voluntary
2 authorization by an individual with legal capacity to give
3 authorization;

4 2. "Depicted individual" means an individual whose body is
5 shown in whole or in part in an intimate image;

6 3. "Disclosure" means transfer, publication, or distribution to
7 another person. "Disclose" has a corresponding meaning;

8 4. "Identifiable" means recognizable by a person other than the
9 depicted individual:

10 a. from an intimate image itself, or
11 b. from an intimate image and identifying characteristic
12 displayed in connection with the intimate image;

13 5. "Identifying characteristic" means information that may be
14 used to identify a depicted individual;

15 6. "Individual" means a human being;

16 7. "Intimate image" means a photograph, film, video recording,
17 or other similar medium that shows:

18 a. the uncovered genitals, pubic area, anus, or female
19 post-pubescent nipple of a depicted individual, or
20 b. a depicted individual engaging in or being subjected
21 to sexual conduct;

22 8. "Person" means an individual, estate, business or nonprofit
23 entity, public corporation, government or governmental subdivision,
24 agency, or instrumentality, or other legal entity; and

1 9. "Sexual conduct" includes:

- 2 a. masturbation,
- 3 b. genital, anal, or oral sex,
- 4 c. sexual penetration of, or with, an object,
- 5 d. bestiality, or
- 6 e. the transfer of semen onto a depicted individual.

7 SECTION 13. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1123 of Title 12, unless there
9 is created a duplication in numbering, reads as follows:

10 A. As used in this section:

11 1. "Harm" includes physical harm, economic harm, and emotional
12 distress whether or not accompanied by physical or economic harm;
13 and

14 2. "Private" means:

- 15 a. created or obtained under circumstances in which a
16 depicted individual had a reasonable expectation of
17 privacy, or
- 18 b. made accessible through theft, bribery, extortion,
19 fraud, false pretenses, voyeurism, or exceeding
20 authorized access to an account, message, file,
21 device, resource, or property.

22 B. Except as otherwise provided in Section 4 of this act, a
23 depicted individual who is identifiable and who suffers harm from a
24 person's intentional disclosure or threatened disclosure of an

1 intimate image that was private without the depicted individual's
2 consent has a cause of action against the person if the person knew
3 or acted with reckless disregard for whether:

- 4 1. The depicted individual consented to the disclosure;
- 5 2. The intimate image was private; and
- 6 3. The depicted individual was identifiable.

7 C. Consent to creation of the image or previous consensual
8 disclosure of the image by a depicted individual does not establish
9 by itself that the individual consented to the disclosure of the
10 intimate image that is the subject of an action under this act or
11 that the individual lacked a reasonable expectation of privacy.

12 D. A depicted individual who does not consent to the sexual
13 conduct or uncovering of the part of the body depicted in an
14 intimate image of the individual retains a reasonable expectation of
15 privacy even if the image was created when the individual was in a
16 public place.

17 SECTION 14. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1124 of Title 12, unless there
19 is created a duplication in numbering, reads as follows:

20 A. As used in this section:

- 21 1. "Child" means an unemancipated individual who is less than
22 eighteen (18) years of age; and
- 23 2. "Parent" means an individual recognized as a parent under
24 law of this state other than this act.

1 B. A person is not liable under this act if the person proves
2 that disclosure of, or a threat to disclose, an intimate image was:

3 1. Made in good faith in:

4 a. law enforcement,

5 b. a legal proceeding, or

6 c. medical education or treatment;

7 2. Made in good faith in the reporting or investigation of:

8 a. unlawful conduct, or

9 b. unsolicited and unwelcome conduct;

10 3. Related to a matter of public concern or public interest; or

11 4. Reasonably intended to assist the depicted individual.

12 C. Subject to subsection D of this section, a defendant who is
13 a parent, legal guardian, or individual with legal custody of a
14 child is not liable under this act for a disclosure or threatened
15 disclosure of an intimate image of the child.

16 D. If a defendant asserts an exception to liability under
17 subsection C of this section, the exception does not apply if the
18 plaintiff proves the disclosure was:

19 1. Prohibited by law other than this act; or

20 2. Made for the purpose of sexual arousal, sexual
21 gratification, humiliation, degradation, or monetary or commercial
22 gain.

1 E. Disclosure of, or a threat to disclose, an intimate image is
2 not a matter of public concern or public interest solely because the
3 depicted individual is a public figure.

4 SECTION 15. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1125 of Title 12, unless there
6 is created a duplication in numbering, reads as follows:

7 In an action under this act:

8 1. The court may exclude or redact from all pleadings and
9 documents filed in the action other identifying characteristics of
10 the plaintiff;

11 2. A plaintiff to whom paragraph 1 of this section applies
12 shall file with the court and serve on the defendant a confidential
13 information form that includes the excluded or redacted plaintiff's
14 name and other identifying characteristics; and

15 3. The court may make further orders as necessary to protect
16 the identity and privacy of a plaintiff.

17 SECTION 16. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 1126 of Title 12, unless there
19 is created a duplication in numbering, reads as follows:

20 A. In an action under this act, a prevailing plaintiff may
21 recover:

22 1. The greater of:

23 a. economic and noneconomic damages proximately caused by
24 the defendant's disclosure or threatened disclosure,

1 including damages for emotional distress whether or
2 not accompanied by other damages, or

3 b. statutory damages not to exceed Ten Thousand Dollars
4 (\$10,000.00) against each defendant found liable under
5 this act for all disclosures and threatened
6 disclosures by the defendant of which the plaintiff
7 knew or reasonably should have known when filing the
8 action or which became known during the pendency of
9 the action. In determining the amount of statutory
10 damages under this subparagraph, consideration shall
11 be given to the age of the parties at the time of the
12 disclosure or threatened disclosure, the number of
13 disclosures or threatened disclosures made by the
14 defendant, the breadth of distribution of the image by
15 the defendant, and other exacerbating or mitigating
16 factors;

17 2. An amount equal to any monetary gain made by the defendant
18 from disclosure of the intimate image; and

19 3. Punitive damages as allowed under law of this state other
20 than this act.

21 B. In an action under this act, the court may award a
22 prevailing plaintiff:

23 1. Reasonable attorney fees and costs; and

24 2. Additional relief, including injunctive relief.

1 C. This act does not affect a right or remedy available under
2 law of this state other than this act.

3 SECTION 17. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1127 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 A. An action under subsection B of Section 3 of this act for:

7 1. An unauthorized disclosure may not be brought later than
8 four (4) years from the date the disclosure was discovered or should
9 have been discovered with the exercise of reasonable diligence; and

10 2. A threat to disclose may not be brought later than four (4)
11 years from the date of the threat to disclose.

12 B. Except as otherwise provided in subsection C of this
13 section, this section is subject to the tolling statutes of this
14 state.

15 C. In an action under subsection B of Section 3 of this act by
16 a depicted individual who was a minor on the date of the disclosure
17 or threat to disclose, the time specified in subsection A of this
18 section does not begin to run until the depicted individual attains
19 the age of majority.

20 SECTION 18. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1128 of Title 12, unless there
22 is created a duplication in numbering, reads as follows:

23 A. This act shall be construed to be consistent with the
24 Communications Decency Act of 1996, 47 U.S.C., Section 230.

1 B. This act may not be construed to alter the law of this state
2 on sovereign immunity.

3 SECTION 19. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1129 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 In applying and construing this uniform act, consideration shall
7 be given to the need to promote uniformity of the law with respect
8 to its subject matter among states that enact it.

9 SECTION 20. This act shall become effective November 1, 2026.

10 Passed the Senate the 9th day of March, 2026.

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12

Presiding Officer of the Senate

13

14 Passed the House of Representatives the ____ day of _____,

15 2026.

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Presiding Officer of the House
of Representatives

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